

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 8, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BARCLAYS BANK DELAWARE vs. ANYA VALENTINE
Case No. CL25-07493**

Petition to Compel Arbitration

TENTATIVE RULING

Defendant's petition to compel arbitration is granted.

Defendant has established that the parties agreed to arbitrate "any claim ... arising from or relating to" the cardmember agreement at the election of either party. (Decl. of Valentine, Exh. A.) Consequently, the burden shifted to Plaintiff to prove waiver or some other defense to the enforceability of the arbitration agreement. (Code Civ. Proc. § 1281.2; *Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

Plaintiff only claims that Defendant has waived the right to compel arbitration.

"To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) Plaintiff has failed to do so. Plaintiff merely argues that Defendant filing an answer, serving written discovery requests, and waiting four months from filing the answer to file the motion to compel arbitration constitute conduct inconsistent with an intent to enforce the contractual right to arbitrate. Plaintiff presents no evidence establishing that Defendant was aware of the arbitration provision before filing the answer or before

propounding her written discovery requests. Plaintiff presents no evidence that Defendant ever expressed any intent to relinquish her right to arbitration upon discovering her right to arbitration.

WELLS FARGO BANK, N.A. vs. KENT A. DOLL
Case No. CL26-02857

Motion to Deem Matters Admitted

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

Plaintiff's motion to deem matters admitted is GRANTED. Each of the requests for admissions is deemed to be admitted.

TOYOTA MOTOR CREDIT CORPORATION vs. ERIKA HERRERAAVENDANO
Case No. CL26-04575

Motion to Set Aside and Vacate Dismissal

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

Plaintiff's unopposed motion to set aside and vacate dismissal pursuant to CCP Section 473(b) is GRANTED. The matter is placed back on the civil active list for further proceedings.

JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.
Case No. CU24-09570

Plaintiff's Motion to Compel Further Responses

TENTATIVE RULING

Plaintiff JOSEPH GULLO's motion to compel further responses from Defendants AMROCK TITLE CALIFORNIA and LAND HOME FINANCIAL SERVICES, INC. is denied.